

Santosh Kumari v. State of U.P. — demand notice quashed for undecided Clause 6.5 objection

High Court of Judicature at Allahabad · Division Bench · 31 January 2019 · Writ-C No. 1950 of 2019 · WRIT - C No. - 1950 of 2019 · **Demand notice quashed; EE to decide Clause 6.5 objections in three months.**

HEADNOTE

A demand notice issued while the consumer's objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 remains undecided cannot stand. After MVVNL's counsel admitted that Santosh Kumari's 28 November 2018 objection had not been disposed of, the Allahabad High Court quashed the 12/15 December 2018 demand and directed the Executive Engineer, Budaun, to consider and decide the objection in accordance with law within three months. The writ petition was allowed.

FACTUAL SUMMARY

Santosh Kumari challenged a 12/15 December 2018 demand of Madhyanchal Vidyut Vitran Nigam Ltd., Budaun. In Writ-C No. 34740 of 2018 she had already challenged a demand of Rs 3,79,636; that petition was disposed of on 30 October 2018 directing the Executive Engineer to decide her Clause 6.5 objection. She filed the objection on 28 November 2018. Without deciding it, the licensee issued a fresh demand. On 22 January 2019 the Court called for instructions; counsel later admitted the objection remained pending.

REUSABLE CONSTRUCTIONS

1. A demand notice issued while the consumer's Clause 6.5 objection remains undecided is liable to be quashed. ¶ 1
2. After such a quash, the Executive Engineer must consider and decide the pending Clause 6.5 objection in accordance with law within the time fixed by the Court. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending-billing-objection

HOLDING

Where the licensee's counsel admits that the consumer's objection under Clause 6.5 of the Electricity Supply Code, 2005 has not been decided, a subsequent demand notice is quashed and the Executive Engineer is directed to consider and decide that objection in accordance with law within three months. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTION AND OF THE UNDERLYING DEMAND OF RS 3,79,636

The Court quashed the subsequent demand solely because the objection had not been decided, and remitted the objection to the Executive Engineer. ¶ 1